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July 11, 2023

THE HONOURABLE JUSTICE JEFFREY R. HU
Supreme Court of Nova Scotia
The Law Courts Building
1815 Upper Water St.
Halifax, NS B3J 1S7

Court Administration
JUL 11 2023
Halifax, N.S.

MY LORD:

Re: ***Leslie J. Conrad, Edwin Conrad, Dan Merzetti, and Sherri Merzetti v. Arichat Metal Fabrication Ltd., and Gregory Boucher, and John Boudreau; Hfx No. 496393***

INTRODUCTION

1. This application in chambers is scheduled before Your Lordship on July 26, 2023 at 2:00 p.m., on a motion for summary judgment on the evidence dismissing the proceeding pursuant to the *Limitation of Actions Act*.[1] Micaela Sheppard and I represent the respondents, Arichat Metal Fabrication Ltd. ("Arichat Metal") and John Boudreau, the moving parties of the motion (together, "AMF Respondents"). The applicants are represented by Michelle Kelly and Lisa Delaney. The co-respondent, Gregory Boucher, and the third party, 1766134 Nova Scotia Limited ("176 NSL"), are represented by Adam Harris.

2. The AMF Respondents had filed a motion for summary judgment on the evidence on April 1, 2021 (amended April 8, 2021; further amended May 24, 2023). In support, the AMF Respondents filed a brief on April 8, 2021 and the applicants filed a brief on May 20, 2021. Since that time, however, the parties have dealt with a motion for production and discovery, which resulted in the production of crucial new evidence to the AMF Respondents which we now rely on in support of the present motion.

1 *Limitation of Actions Act*, SNS 2014, c 35, "*LAA*".